

The examination is being carried out on the **following application documents**

Description, Pages

1-200 as published

Claims, Numbers

1-22 filed with entry into the regional phase before the EPO

1. Amendments

a, The following amendments as filed with entry into the regional phase are admissible under Art. 123 (2) EPC: claim 1 is based on claims 1, 17-19, 23, 24 and 26 as originally filed, claims 2 and 3 on claims 5 and 6 as originally filed, claims 4 and 5 on claims 7 to 10 and 11 to 12 as originally filed, claims 6 to 11 on claims 28 to 29, 31 to 41, 42 and 43 as originally filed, claims 12 to 16 are based on claims 44 to 47, 48 to 49, 50 to 52, 53 to 54 and 55 to 56 Claim 17 is based upon claims 57 to 68 as originally filed with reference to claim 1. Claim 18 is based on claim 65 and table 1 as originally filed and claims 19 to 22 have their basis in claims 67 to 68, 73, 83 and 85 to 88 as originally filed.

2. Novelty

Due to the restrictions as made to residue R¹ in claim 1, documents D1 to D3 and documents D5 to D21 are no longer novelty destroying, since they bear residues in the position corresponding to the position of present residue R¹ which do no longer fall under the restricted scope of claim 1.

Nevertheless, the compound (2-chlorophenyl)-carbamoyl-Leu-OH is definitely a compound falling under the scope of present claim 1: R¹ is 2-chlorophenyl (group e) in present claim 1), R³ is C₄-alkyl and R⁴ is hydrogen. Thus claims 1, 7 and 11 do not fulfil the requirements of novelty according to Art. 54 EPC.

3. Inventive step

Document D22 is to be considered to be the closest prior art, since this document is the only one concerned with inhibitors of the activation of the NLRP3 inflammasome as is the present application. These compounds do show a completely different chemical

structure they are sulfonyl urea derivatives whereas the present compounds are cycloalkyl-, hexhydroindacenyl-, phenyl-, naphthyl-, benzofuranyl- and thienyl-carbamoyloxy-acetic acid derivatives.

Thus, the problem underlying the present application is to be seen in the provision of further inhibitors of the activation of the NLRP3 inflammasome. This problem has apparently been solved as demonstrated by example 126 given in the description. The solution of this problem could in principle be considered to involve an inventive step, since the closest prior art could not have given any hint to the skilled person, that the claimed carbamoyloxy-acetic acid derivatives would show an inhibitory effect on the activation of the NLRP3 inflammasome. Thus, as far as being novel, the subject matter of present claims 1 to 22 appears to fulfil the requirements according to Art. 56 EPC.

4. The Applicant is invited to file a new claims. It is brought to the Applicant's attention, that any amendments must strictly meet the requirements of Art. 123 (2) EPC and that a clear basis for any amendment in the specification as originally filed has to be given.